

STATE OF NEW YORK
SUPREME COURT COUNTY OF BRONX

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DARIUS TROTMAN,

Plaintiff,

-against -

**THE CITY OF NEW YORK, POLICE
OFFICER JIMENEZ, POLICE OFFICER
DELGADO, and POLICE OFFICER OHARE,**
in their individual and official capacities as Police
Officers employed by the City of New York

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Complaint in this action and to serve a copy of your Answer, or of the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty [30] days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: March 24, 2015
New York, New York

Yours, etc.,



ANDREW F. PLASSE & ASSOCIATES LLC
Attorney for the Plaintiff
Office and P.O. Address
352 7th Avenue, Suite 1222
New York, NY 10001
(212) 695-5811

DEFENDANTS' ADDRESS:

City of New York, Office of the Corporation Counsel, 100 Centre Street, New York, NY
10007
Police Officers Jimenez, Delgado and Ohare
830 Washington Ave., Bronx, NY 10451

STATE OF NEW YORK
SUPREME COURT

COUNTY OF BRONX

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DARIUS TROTMAN,

Plaintiff,

- against -

COMPLAINT

Index No.:

**THE CITY OF NEW YORK, POLICE
OFFICER JIMENEZ, POLICE OFFICER
DELGADO, and POLICE OFFICER OHARE,**
in their individual and official capacities as Police
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Defendants.

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Plaintiff, by his attorney, ANDREW F. PLASSE & ASSOCIATES, LLC,
Attorney at Law, as and for his Complaint, hereby alleges and shows to the Court the
following, all upon information and belief:

1. At all times hereinafter mentioned, the Plaintiff Darius Trotman is an individual and resides at 615 East 168th Street, Apt. 2A, Bronx, NY 10456.
2. Upon information and belief, and at all times hereinafter mentioned, defendant City of New York, was and now is, a municipal corporation, existing under and incorporated under the laws of the State of New York, with its principal place of business located at the Municipal Building, One Centre Street, New York, NY 10007.
3. That heretofore the Plaintiff Darius Trotman caused a Notice of Claim, in writing, sworn to by and on behalf of himself, to be duly served upon the defendant City of New York by delivering a copy thereof to the Office of the Corporation Counsel of the City of New York, which said Notice of Claim set forth the name and post office address of the said claimant, the nature of the claim, the time when, the place where and

the manner in which said claim arose and the items of damages or injuries claimed to have been sustained so far as then practicable; that the plaintiff was noticed and did appear at a 50 h hearing held on September 2, 2014; that at least ninety [90] days have elapsed since the service of said Notice of Claim and payment thereof has been refused; and that this action is being commenced within one year and ninety days after the occurrence of the event upon which this claim is based.

4. That upon information and belief, the City of New York owned, operated, controlled and maintained the New York City Police Department by charter, or by law, under the provisions of the State and/or City of New York.

5. Upon information and belief, and at all times hereinafter mentioned, defendants Police Officer Jimenez, Police Officer Delgado and Police Officer Ohare were and now are New York City Police Officers, who were employed with the New York City Police Department on the date of this incident.

6. At the time of the alleged incident and at all times pertinent hereto, the defendants Police Officer Jimenez, Police Officer Delgado and Police Officer Ohare acted under color of State Law or a statute, ordinance, regulation or custom.

STATEMENT OF FACTS

7. On May 14, 2012 at approximately 2:10 a.m., Darius Trotman was arrested for allegedly committing the crime of Attempted Murder and Possession of a Weapon at 1255 Webster Ave., Bronx, NY.

8. Plaintiff was arrested for the crime on May 14, 2012 Police Officer Jimenez, Police Officer Delgado and Police Officer Ohare, without probable cause.

9. Plaintiff twenty two months in jail after his arrest.

10. On March 26, 2014, the charges were dismissed and plaintiff was released. .

AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS POLICE OFFICERS JIMINEZ, DELGAOD AND OHARE 2, JOINTLY AND SEVERALLY, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-10" AND FURTHER ALLEGES AS FOLLOWS:

12. Upon information and belief, the actions taken as aforesaid by Defendants Police Officer Jimenez, Police Officer Delgado and Police Officer Ohare, were unconscionable and an unreasonable search and seizure in violation of the Fourth Amendment and a deprivation of liberty without due process of law under the Fifth and Fourteenth Amendments.

13. Upon information and belief, Defendants Police Officer Jimenez, Police Officer Delgado and Police Officer Ohare, acted with actual malice toward the Plaintiff and with willful and wanton indifference and deliberate disregard for the statutory and constitutional rights of the plaintiff.

14. Solely by reason of the above, the plaintiff sustained severe personal injuries, was rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff has been and continues to be unable to pursue the usual duties with the same degree of efficiency as prior to this accident, all to plaintiff's great damage.

15. That by virtue of the foregoing, Plaintiff has been damaged in the amount of TEN MILLION [\$10,000,000.00] DOLLARS.

AS AND FOR A FIRST CAUSE OF ACTION, AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-10" AND FURTHER ALLEGES AS FOLLOWS:

16. That the employees of the defendant as aforesaid jointly and severally maliciously prosecuted the plaintiff causing him to sustain severe personal injuries.

17. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY OF NEW YORK, PLAINTIFF RESTATES AND REALLEGES EACH AND EVERY ALLEGATION SET FORTH IN PARAGRAPHS MARKED AND ENUMERATED "1-10" AND FURTHER ALLEGES AS FOLLOWS:

18. Upon information and belief, the actions taken as aforesaid by Defendants Police Officer Jimenez, Police Officer Delgado and Police Officer Ohare, constituted an unreasonable search and seizure and deprivation of liberty without due process of law.

19. Upon information and belief, at all times pertinent hereto, New York City permitted and tolerated a pattern and practice of unreasonable search and seizures, stop and frisks, denial of prompt medical treatment, and deprivations of liberty without due process of law by Police Officers of the City of New York.

20. Upon information and belief, the City of New York has maintained a system of review of this police conduct which is so untimely and cursory as to be ineffective and which permits and tolerates the unreasonable stop and frisks, search and seizures and deprivations of liberty without due process of law by Police Officers.

21. At all times pertinent hereto, Defendants Police Officer Jimenez, Police Officer Delgado and Police Officer Ohare, were acting within the scope of their

employment and pursuant to the aforementioned policies and practices of the City of New York. These policies and practices which were enforced by Defendant City of New York were the moving force, proximate cause, or the affirmative link behind the conduct causing the stop of the plaintiff and the plaintiff's subsequent injuries.

22. The City of New York is therefore liable for the violations of Plaintiff's constitutional rights by Defendants Police Officer Jimenez, Police Officer Delgado and Police Officer Ohare.

23. That by reason of the foregoing, the plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff demands Judgment as follows:

I. Judgment on the First Cause of Action against defendants Police Officer Jimenez, Police Officer Delgado and Police Officer Ohare in the amount of TEN MILLION (\$10,000,000.00) DOLLARS;

II. Judgment on the First Cause of Action against Defendant City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

III. Judgment on the Second Cause of Action against Defendant City of New York in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction;

IV. Judgment for Punitive Damages against Defendants Police Officer Jimenez, Police Officer Delgado and Police Officer Ohare , in the amount of TEN MILLION [\$10,000,000.00] DOLLARS;

V. Together with the costs and disbursements of this action, for reasonable attorney's fees under the applicable Federal Statutes, and for such other and further relief as to this Court seems just and proper.

DATED: March 24, 2015
New York, New York

Yours, etc.,



ANDREW F. PLASSE & ASSOCIATES LLC
Attorney for the Plaintiff
Office and P.O. Address
352 7th Avenue, Suite 1222
New York, NY 10001
(212) 695-5811

VERIFICATION

STATE OF NEW YORK)
COUNTY OF NEW YORK) ss.:

I, the undersigned, an attorney duly admitted to practice law in the State of New York, state that I am attorney of record for Darius Trotman, the plaintiff in the within action; I have read the foregoing COMPLAINT and I know the contents thereof; the same is true as to my own knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters, I believe it to be true; the reason why this verification is made by me and not by Darius Trotman, is because he resides outside of the County of New York, and is outside the principal location of my office which is located in New York County.

The grounds of my belief as to those matters not stated upon my own knowledge are as follows: Review of his file maintained by my office in the ordinary course of business.

DATED: March 24, 2015
New York, New York



ANDREW F. PLASSE